

Ideal Qualities of Judges

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Presentation Outlines

- The Judgeship
- Ideals of a Judge
- What Qualities Make a Judge Good Judge
- Becoming a Good Judge

References

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The Judgeship

- The judge is the pillar of our entire justice system
- Judges are to exercise supposed will of gods
- Representative of God
- The discharge of judicial functions is an act of divinity – C J R C Lahoti
- Judiciary is the last and best hope of democracy
- The public has a right to demand “virtually irreproachable (ideal/flawless) conduct from anyone performing a judicial function

The Judgeship

- "We form a particular group in the community. We comprise a select part of an honorable profession. We are entrusted, day after day, with the exercise of considerable power" – J B Thomas
- Judges must administer justice judicially
- The authority of the ideal judex (ancient Roman age) was marked by self-control and rationality

The Judgeship

- Even God, who has created the human being, does not sit in judgment over his deeds until the human's death whence only he determines whether he deserves to be sent to hell or heaven. You have been given the authority to sit in judgment over the deeds of a man in his lifetime – CJ R C Lahoti (then Justice) in The Culture of a Judge, delivered in the Delhi Judicial Academy
- Zechariah Chafee, Jr., has stated that while, in the art of judging, legal power "is much; it is not all," but that the important residuum in the equipment of a judge is "the desire to understand human life as well as embalmed legal experience."

Ideals of Justice



Ideals of Judge in the Past

- The ideal of a good judge originates from the ancient goddesses of justice, who were personification of the moral force in judicial systems. The Egyptian goddess Maat, the Greek goddess Themis or the Roman goddess Justitia (Lady Justice) symbolised perfect justice, which was expected to be pursued by human judges as well. These goddesses embodied divine order, truth, and the rightness of law. Their female character was due to the high rank of women in ancient Egyptian society, which influenced the more restrictive Greek and Roman conventions. All of them were depicted with a set of objects which symbolised justice. Maat held in their hands symbols of power and eternal life. Themis and Justitia were showed with sword and a set of scales as symbols of authority and weighing truth. Depictions of Lady Justice wearing a blindfold are modern, not classical. The concept of blind Justice appeared in the 16th century and it represented impartiality, the ideal that justice should be applied without regard to wealth, power or other status. In some modern depictions blindfold is shifted to show that judges must be alert and aware.

What Qualities Make a Judge Good Judge ?

- Qualities are often linked with judicial ethics but it is more than that
- When a judge sits on trial, he himself is on trial.
- Core qualities that make a judge exemplary

नारद स्मृतिमा भनिएको छ :

राजा तु धार्मिकान् सभ्यान् नियुञ्ज्यात् सुपरीक्षितान् ।

व्यवहारधुरं वोढुं ये शक्ताः सद्भवा इव ॥

धर्मशास्त्रा कुशलाः कुलीनाः सत्यवादिनः ।

समा शत्रौ च मित्रे च नृपतेः स्युः सभासदः ॥

अर्थात् राजाले सच्चरित्रताको परीक्षणबाट खारिएका, सम्मानित, न्याय प्रशासनको जिम्मेवारी वोक्न सक्ने र पवित्र कानूनहरु तथा विवेकका नियमहरु राम्रोसँग जानेका, उदात्त स्वभावका मित्र र शत्रु प्रति समान व्यवहार गर्न सक्ने व्यक्तिलाई न्यायालयको सदस्यको रूपमा नियुक्त गर्नुपर्छ ।

कात्यायानका अनुसार

अकुरो मधुर : स्निग्ध : क्षमायातो विचक्षण

उत्साहवान लुब्धश्च वोदे योज्यो नृपेणतु ॥

अर्थात् विवादहरुको निरोपणको लागि दयालु (अक्रुर) मृदुभाषी,
सफा, चलाख, जाँगरिलो तर लोभलालच नभएको व्यक्ति न्यायाधीशमा
नियुक्त गर्नुपर्छ

How to Become a Good Judge ?

- Self-management
- Courtroom Demeanor
- Proper judicial temperament
- Decisiveness
- Creativity
- Independence and courage
- Moral excellence
- Role model

Self-management

- Manage yourself first
 - Punctuality
 - Devote adequate time to judicial duties
 - Don't make comments of colleague
 - Don't make comments about the pending cases
 - Diligent

Courtroom Demeanor

- It is the ability to communicate with counsel, jurors, witnesses and parties calmly and courteously, as well as the willingness to listen to and consider what is said on all sides of a debatable proposition.

Courtroom Demeanor

- Often raised complaints –
 - rude and abusive behavior,
 - biased comments,
 - misuse of the contempt power,
 - treatment of court staff, including sexual harassment
 - Ex parte communication

Misuse of Contempt Power

- Holding a prosecutor in contempt for failing to request permission before leaving the courtroom to console a witness and turning his back on the judge, without affording the prosecutor the opportunity to be heard (*In re Jefferson*, 753 So. 2d 181 (Louisiana 2000)).

Treatment of Court Staff

- A great judge treats his or her staff with the utmost respect—and for that reason the clerks work extra hard and the bailiff would literally take a bullet for that judge.
- Repeatedly using derogatory and demeaning terms when referring to or criticizing female employees, including “Alzheimer’s,” “PMS,” “senile,” “that time of the month,” “dumb blond,” “stupid,” “gold digger,” and “menopause” (In re Brown, Opinion (July 14, 2006) and Order (Pennsylvania Court of Judicial Discipline October 2, 2006) (www.cjdpa.org/decisions/index.html)).
- Correcting and/or criticizing secretaries loudly and in the presence of third parties, including members of law enforcement and the general public, causing them to suffer embarrassment and humiliation (In re Brown, Opinion (July 14, 2006) and Order (Pennsylvania Court of Judicial Discipline October 2, 2006) (www.cjdpa.org/decisions/index.html)).

Ex-parte Communication

- Receiving ex parte communications from police officers concerning the merits of traffic cases, including representations that the actual speed that defendants had been driving was greater than the speed charged (In the Matter of Westcott, Determination (New York State Commission on Judicial Conduct December 17, 1997) (www.scjc.state.ny.us/)).
- Sending an e-mail message to an attorney appearing in a case before the judge that solicited the attorney's advice on how to handle the matter (Public Admonishment of Caskey (California Commission on Judicial Performance July 6, 1998) (cjp.ca.gov/pubdisc.htm)).

Decisiveness

- Power can be intoxicating and might sometimes seem easier to misuse than properly to use, whether in the hands of judges or anyone else. Judges who misuse their power sometimes do so in the form of rushing through dockets and dismissing cases more in the name of “administrative efficiency” than in the name of the law or justice.
- Decisiveness does not mean to dispose cases anyhow

Creativity

- Law, instead of being fixed and static, becomes a living, changeable entity, aiming to satisfy the needs of human society-what Roscoe Pound has called "a continually more efficacious social engineering." (Pound in "The Philosophy of Law")
- The law is not always clear on how to rule.
- Living law theory
- Purposive approach

Independence, Courage and Integrity

- Internal independence
- Some judges act as [prosecutors in robes](#)
- सन् १८०१ मा अवकाश लिंदै गरेका राष्ट्रपति जोन एडम्सले नियुक्त गरेका न्यायाधीश विलियम मारबरीको नियुक्तिलाई नयाँ नियुक्त राष्ट्रपति थमस जेफरसनका सचिव म्याडिसनले समर्थन नगरेको विरुद्धमा परेको मुद्दामा त्यो इन्कारीलाई मात्र गैरकानूनी ठहराएको होइन कि कानूनलाई नै असंवैधानिक घोषित ।

Independence, Courage and Integrity

- “Integrity” is not being influenced by the identity, race, gender, political status, wealth or relationship of the party or lawyer before the judge. More basically it is not doing what the judge knows to be wrong.
- There cannot be a strong and vibrant Judiciary unless the Judges are persons of integrity.

Independence

- Judicial independence is not a freedom to do what you like or what you consider as just and equitable. You are required to render justice in accordance with law, and not justice as per your convictions or what you consider as just
- In the language of Benjamin N. Cardozo: “The Judge even when he is free, is still not wholly free. He is not to innovate at pleasure.”

Independence and Courage

- निन्दा गरुन् वा प्रशंसा, लक्ष्मी आउन् वा जाउन्,
- आजै मर्नु परोस् वा कालान्तरमा,
- यी कुनै कुराको कत्ति पनि परवाह नराखी
- न्यायिक मार्गमा लाग्नेहरु कहिल्यै विचलित हुँदैनन् ।

Interpersonal Skills

- Interpersonal skills are the skills we use every day when we communicate and interact with other people, both individually and in groups.
- They include a wide range of skills, but particularly communication skills such as listening and effective speaking. They also include the ability to control and manage your emotions.
- Good interpersonal skills 'oil the wheels' of these interactions, making them smoother and pleasanter
- treat everyone—even the accused murderer—with the same even-handed comments and courtesy.

Moral Excellence

- Literally, the moral excellence is the quality of doing what is right and avoiding what is wrong.
- Judges, individually and collectively, must respect and honor the judicial office as a public trust and strive to maintain and enhance confidence in the legal system.
- Deference to the judgments and rulings of courts depends upon public confidence in the integrity of judges. The integrity of judges depends in turn upon their acting without fear or favor
- Engaging in several business transactions with and accepting a gift from a car dealer to whom the judge had awarded a substantial verdict even though the judge did not expect to receive a financial favor (Adams v. Commission on Judicial Performance, 897 P.2d 544 (California 1995)).

Role Model

- Judges are required to “personally observe high standards of conduct”
- applies to “all of the judge’s activities” and “at all times” | Professional as well as personal life.
- Unwritten code of conduct is more strong than a written one.

Role Model

- Warning a police officer who stopped the judge for driving while intoxicated that the officer would “regret this” and telling the officer to “watch out from here on in” (In the Matter of Winkworth, Determination (New York State Commission on Judicial Conduct September 21, 1992) (www.scjc.state.ny.us/)).
- Allowing the use of his name, title, and photograph in a brochure used to solicit funds (In the Matter of Castellano, 889 P.2d 175 (New Mexico 1995)).

Proper Judicial Temperament

- It seems to me that temperament is the key to everything else that one does on the bench - Hon. Jeremy Fogel
- Trump's detractors uniformly attacked his temperamental fitness to be President (lack of verbal restraint," reactivity when taunted, and love of "creating disorder")

Socrates

- Socrates aptly described the essential qualities of a good judge: Four things belong to a judge:
 - To hear courteously;
 - to answer wisely;
 - to consider soberly; and
 - to decide impartially.
- These words remain as true today as they were when Socrates first spoke them more than 2,400 years ago.

Proper Judicial Temperament

- Patience

(धैर्यता)

- Courtesy

(सौहार्द्र)

- Firmness

(भद्रता)

- Understanding

(समझदारी)

- Compassion

(सहानुभुति)

- Humility

(नम्रता)

Judicial aloofness and detachment

- Judicial aloofness is not living in ivory towers. It does not mean that you should not be alive to the problems of the society or that you need not understand the day-to-day realities of life. Judges should be able to understand the needs of the society and 'connect' to the problems and difficulties of the weaker sections and provide access to justice to the poor and downtrodden.
- At the physical level, judicial aloofness refers to the need for Judges to maintain 'distance.' You should avoid mixing with members of the Bar, politicians or litigant public, except at public functions or at open private events like marriages and deaths. Your smile at a lawyer or a litigant inside a court, your chat with a lawyer or litigant outside your court, share a joke with a politician at a public function, tend to be misunderstood and misinterpreted by the public and the bar. If you meet or mix with them in private, either in your house or their house or places like hotels, restaurants, clubs, you are inviting trouble. Tongues will wag. We live in a world full of suspicion. More so in the case of Judges. Therefore, you should avoid mingling with lawyers and the litigants.

Judicial aloofness and detachment

- Please remember nothing in this world comes free or without strings attached. Every one expects the return of a favour.
- You should not only be honest, but seen to be honest. You have to be careful how you deal with others in your private life. You cannot assume: “My conscience is clear. I am not corrupt. I can therefore mix with any politician. I will go for lunch with a lawyer.” You may be honest. But, unfortunately, the litigants and the public do not assume that you are honest.

अन्त्यमा

- John Marshall said: “The power of Judiciary lies, not in deciding cases, not in imposing sentences, not in punishing for contempt, but in the trust, faith and confidence of the common man.” If Judiciary loses the trust, faith and confidence of the common man, that will be the end of rule of law and democracy.
- Lord Denning aptly said, “More than any one else, a judge is a responsible person. His first accountability is, of course, to his own conscience.”
- The real judge of the judge is he himself.

Thank you